

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SILVIA MICHELLE ALEMAN,

Petitioner

VS.

ANDREW REYES,

Respondent

) Case Number: FDI-25-801091

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING; REQUEST FOR HEARING AND APPLICATION TO SET ASIDE
SUPPORT ORDER UNDER FAMILY CODE SECTION 3691

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Silvia Aleman (Wife) and Respondent Andrew Reyes (Husband). The parties married on 3/14/2009 and they agree their date of separation is 3/8/2025, for a marriage of 15 years and 11 months. The parties have no minor children. Both parties are self-represented.
- 2) On 3/26/2025, in related Case No. FDV-25-818257, the Court denied Husband's request for a Domestic Violence Restraining Order against Wife.
- 3) Issues Regarding Wife's Preliminary Declaration of Disclosure
 - a. At the prior 4/30/2026 hearing, among other orders made, the Court ordered Wife to serve on Husband all documents that are required to be included with a Preliminary Declaration of Disclosure and to file a Declaration Regarding Service (FL-141) no later than 5/8/2026. A hearing was set for 5/28/2026 to "review Wife's compliance with this order and consider awarding sanctions to Husband."

- 1 b. On 4/30/2026, Wife filed a Declaration Regarding Service of Declaration of Disclosure
2 stating that her Preliminary Declaration of Disclosure was emailed and mailed to
3 Husband on 4/30/2026.
- 4 c. On 5/13/2026, Husband filed a Declaration naming over 6 pages of “deficiencies” in
5 Wife’s Preliminary Declaration of Disclosure which will not be restated here.
- 6 d. On 5/18/2026, Wife filed a Declaration in Response to Andrew Reyes’ Declaration
7 Identifying Deficiencies in Petitioner’s Preliminary Declaration of Disclosure. Wife
8 states that Husband demands strict compliance with disclosure requirements while failing
9 to satisfy those same requirements himself. Wife states that Husband has failed to
10 respond to discovery and owes her \$11,079 in support arrearages plus Smith / Ostler
11 bonus support arrears.
- 12 e. On 5/20/2026, Husband filed a Declaration naming the following additional
13 “deficiencies” in Wife’s Preliminary Declaration of Disclosure:
- 14 i. Wife did not produce any tax returns and stated she would only provide IRS
15 Form 4868 for tax year 2025 “upon request from the court”
- 16 ii. Wife must produce a complete platform-generated Venmo statement from her
17 phone or laptop showing account holder, beginning balance, ending balance,
18 current balance, and most recent months transaction history
- 19 iii. Wife must produce documentation substantiating her claimed monthly housing
20 expense
- 21 iv. Wife must correct her Income and Expense Declaration to quantify the value of
22 the housing and related living expenses she receives through her pet-sitting
23 arrangements”

24 4. Husband’s Request to Set Aside Prior Temporary Spousal Support Orders

- 25 a. Also on for hearing is Husband’s Request for Hearing and Application to Set Aside
26 Support Order Under Family Code section 3691 filed 3/20/2026. Husband asks the Court
27 to set aside the Court’s prior orders (made on 9/2/2025 and 11/4/2025) which require
28 Husband to pay Wife \$3,693 per month in temporary guideline spousal support, plus
29 Smith / Ostler bonus support. Husband states that Wife failed to timely serve or failed to

1 serve completely documents related to Wife's spousal support request, including Wife's
2 initial FL-300 requesting spousal support and the declarations filed on 7/3/2025,
3 7/30/2025, 8/19/2025, and 10/20/2025. Husband states that Akbar Khan signed various
4 Proofs of Service stating that these documents were served on Husband, but Husband
5 obtained a signed affidavit by Akbar Khan stating that he did not sign the Proofs of
6 Service nor serve the documents in question. Husband also states that after the spousal
7 support proceedings had concluded, Wife admitted that following the parties' separation
8 she has stayed with friends or exchanged pet sitting services for temporary housing,
9 which means that Wife materially misrepresented her needs when she filed her spousal
10 support request. Husband states that, as a result, he paid \$20,000 in temporary spousal
11 support based on "materially overstated need." Husband asks the Court to set aside the
12 prior support orders or waive any claimed arrears. Husband also requests monetary
13 sanctions under Family Code section 271.

14 b. On 5/4/2026 and 5/6/2026, Wife filed identical Declarations stating she was never served
15 with Husband's request to set aside the temporary spousal support orders. Wife states she
16 only became aware of this motion by reviewing the Register of Actions. Wife asks the
17 Court to "note this failure for the record, require Respondent to immediately serve
18 Petitioner with the Section 3691 motion and all supporting documents, and require
19 Respondent to file a proof of service with the Court confirming such service before the
20 May 28, 2026 hearing proceeds."

21 c. On 5/20/2026, Husband filed a Declaration in Support of Motion to Set Aside Temporary
22 Support Order. Among other arguments and statements made, Husband states, "Petitioner
23 has not filed a Responsive Declaration (FL-320) directly addressing the allegations
24 concerning forged proofs of service or the alleged misrepresentations regarding her
25 housing expenses."

26 **B. Findings and Order**

- 27 1) No later than 6/15/2026, Wife shall serve on Husband a copy of her IRS Form 4868 for tax year
28 2025 as well as an updated Schedule of Assets and Debts which addresses the following issues:
29

- a. Wife shall list the account name, account number, bank name, or branch of her checking and savings accounts and she shall also attach account statements for the past two months
 - b. Wife shall not leave any category of assets or debts blank. If she does not own or possess any asset or debt in the corresponding category, she must write “none.”
- 2) Husband’s request that the Court order Wife to correct all other named deficiencies is denied, albeit without prejudice to Husband’s ability to conduct discovery to address additional requests for information.
- 3) Husband’s request for sanctions related to Wife’s Preliminary Declaration of Disclosure is denied.
- 4) The Court does not see Proofs of Service on file demonstrating service of Husband’s Request for Hearing and Application to Set Aside Support Order Under Family Code section 3691 filed on 3/20/2026 or Husband’s Declaration in Support of Motion to Set Aside Temporary Support Order filed on 5/20/2026. The Court also does not see a Proof of Service on file demonstrating service of Wife’s Declaration filed on 5/4/2026. The hearing on Husband’s request to set aside the Court’s prior temporary support orders is hereby continued to **Tuesday, 8/11/2026 at 9:00 AM in Dept. 404.**
- 5) By the deadlines set forth in the Code of Civil Procedure, Husband shall have the pleadings he filed on 3/20/2026 and 5/20/2026 served on Wife.
- 6) By the deadlines set forth in the Code of Civil Procedure, Wife shall file a Responsive Declaration and have her Responsive Declaration and her declarations filed on 5/4/2026 and 5/6/2026 served on Husband.
- 7) By the deadlines set forth in the Code of Civil Procedure, Husband may file and serve a Reply Declaration (not to exceed 5 pages in length, not including exhibits).
- 8) The Court will prepare the Findings and Order After Hearing.